

Tentative Rulings for September 21, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2406139	WELLS FARGO BANK, N.A. VS ESTRELLA	MOTION TO VACATE DISMISSAL 664.6 CCP

Tentative Ruling: No opposition filed. Motion **GRANTED**.

It is ORDERED that the Dismissal entered by the Court shall be, and hereby is, vacated, lifted and set aside. The Court further ORDERS the Entry of Judgment in favor of Plaintiff, Wells Fargo Bank, N.A., and against Defendant, GILBERT ESTRELLA, an individual, in the sum of \$1,196.00, plus costs of \$315.00, for a total Judgment of \$1,511.00. Court to sign the proposed order and the proposed judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVME2515452	SELECT FUNDING, LLC, A LIMITED LIABILITY COMPANY VS TELLO	MOTION TO VACATE DISMISSAL

Tentative Ruling: Motion **GRANTED**.

Relief From Dismissal Is Mandatory Under CCP Section 473(b) Because the Dismissal Resulted From Counsel's Neglect. Case is returned to active status. An Order to Show Cause re: Why sanctions up to \$1500 or dismissal shall not be imposed for failure to file a proof of service and Trial Setting Conference to trial is scheduled for December 17, 2026, 8:00 a.m., Dept. M205 t Menifee Justice Center. Remote appearance will be allowed. Plaintiff to give notice.

3.

CASE #	CASE NAME	HEARING NAME
CVME2516608	WELLS FARGO BANK, N.A. VS LINDSLEY	MOTION FOR ORDER DEEMING THE TRUTH OF MATTERS SPECIFIED FOR ADMISSIONS AS ADMITTED

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on 06/12/2026 are deemed admitted. Court to sign the proposed order

4.

CASE #	CASE NAME	HEARING NAME
CVME2605164	CAPITAL ONE N.A. VS VILLEGAS	MOTION TO VACATE DISMISSAL 664.6

Tentative Ruling: Motion is unopposed. Motion **GRANTED**.

IT IS HEREBY ORDERED that the dismissal as to JOHN P VILLEGAS entered on June 10, 2026 be set aside and vacated, and judgment entered in favor of Plaintiff CAPITAL ONE, N.A., and against Defendant JOHN P VILLEGAS, in the principal sum of \$13,994.81, and court costs in the sum of \$923.61 for a total judgment of \$14,918.42. Court to sign the proposed order and proposed judgment.